



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 8526
(SEVENTH REVISION)

APR 10 2003

EXPIRATION DATE: March 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. **GRANTEE:** Contract Transportation Systems Company
Cleveland, Ohio
2. **PURPOSE AND LIMITATION:**
 - a. This exemption authorizes the transportation in commerce of certain Class 3 and Division 2.2 hazardous materials in temperature controlled equipment. This exemption provides no relief from any Hazardous Materials Regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR § 177.834(1)(2)(i), except as specified herein.
5. **BASIS:** This exemption is based on the application of Contract Transportation Systems company dated April 1, 2003 submitted in accordance with § 107.109.
6. **HAZARDOUS MATERIALS (49 CFR § 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquids, n.o.s.	3	UN1993	I
Liquefied gas, n.o.s.	2.2	UN3163	N/A

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7. SAFETY CONTROL MEASURES:

a. PACKAGING - The materials listed in paragraph 6, packaged in accordance with the HMR may be shipped in motor vehicles equipped with heating apparatus operated by propane fuel. Any electrical apparatus in the lading space must be of non-sparking or explosion proof type. There may not be a combustion apparatus in the lading space, and a connection for return of air from the lading space to any combustion apparatus. The heating system (including a required thermostatically controlled blower(s) must be such that no part of the lading will be heated to over 130°F. and must conform to 49 CFR 393.77.

b. The heating unit and component parts must be as shown on Elston Equipment Co. drawings numbered 200, 202-1, 202-2, 202-3, 202-4, 202-5, 202-6, 202-15, 202-16, and 202-E, dated June 21, 1979 (remote control box as shown in Elston Equipment Co. drawings numbered 404 and 404-2 dated June 21, 1984 is authorized). The heater unit and its fuel supply must be externally mounted on truck or trailer, must retain combustion in a sealed combustion chamber, must utilize outside air for combustion (air from cargo space cannot be used for combustion) and gases from combustion must be exhausted to the outside of truck or trailer.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

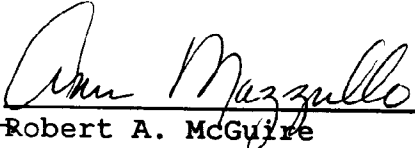
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln